



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing ten judgments on Tuesday 17 March 2020 and 25 judgments and / or decisions on Thursday 19 March 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 17 March 2020

[Kosenko v. Russia \(applications nos. 15669/13 and 76140/13\)](#)

The applicant, Mikhail Kosenko, is a Russian national who was born in 1975 and lives in Moscow.

The case concerns the applicant's pre-trial detention after he took part in the Bolotnaya Square protest in Moscow in May 2012.

The applicant was arrested in June 2012 on suspicion of taking part in mass disorder and using violence against the police during the protest in Bolotnaya Square, which was a rally of opposition activists which led to clashes with the police (the Court has issued a number of judgments related to events that day).

Mr Kosenko, who has schizophrenia and receives a disability pension, was remanded in custody after his arrest, with the court referring to the seriousness of his offence and the fact that he might abscond or interfere with the investigation. The pre-trial detention order was extended several times, with the applicant appealing for alternative preventive measures, such as house arrest or bail.

He was ultimately found guilty of the charges in October 2013 but absolved from criminal liability owing to mental incapacity. He was committed to a psychiatric hospital, from which he was released in July 2014. His mother died during his pre-trial detention and he was not able to attend her funeral because the authorities did not respond to his applications for short-term leave. He was also not allowed visits from his sister, who was his legal guardian.

During his pre-trial detention he was held for a time in a facility which did not have a hospital ward. He also received several visits from psychiatrists.

Relying on Article 3 (prohibition of inhuman or degrading treatment) of the European Convention on Human Rights, the applicant complains that he did not receive adequate medical assistance for his psychiatric condition in the first five months of his pre-trial detention.

He also raises complaints about the reasons for his detention under Article 5 §§ 1 (c) and 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial) and Article 5 § 4 (right to have lawfulness of detention decided speedily by a court). Under Article 8 (right to respect for private and family life) he complains about the restrictions on family visits and the refusal to give him short-term leave to attend his mother's funeral.

[Just Satisfaction](#)

[Zhidov and Others v. Russia \(nos. 54490/10, 1153/14, 2680/14, and 31636/14\)](#)

The case concerns applications lodged by Russian nationals who complained of an infringement of their right under Article 1 of Protocol No. 1 (protection of property) of the European Convention on

account of court decisions ordering the demolition of buildings belonging to them on account of their proximity to gas and oil pipelines. The buildings had been designated as illegal constructions.

In its principal judgment of 16 October 2018 the Court found a violation of Article 1 of Protocol No. 1 to the Convention as regards three applicants (applications nos. 1153/14 and 2680/14). It ruled that the demolition order on the properties belonging to those three applicants had contravened the requirements of Article 1 of Protocol No. 1, and reserved the examination of the application of Article 41 (just satisfaction) for a later date.

The Court will adjudicate on that issue in its judgment of 17 March 2020.

Thursday 19 March 2020

[Fabris and Parziale v. Italy \(no. 41603/13\)](#)

The applicants, Gian Paolo Fabris and Carmela Parziale, are Italian nationals who were born in 1940 and 1963 respectively and live in Abano Terme (Italy).

The case concerns the death of a relative of the applicants while in detention in Venice Prison. Mr Fabris was the deceased's uncle and Ms Parziale his cousin.

In May 2005 the applicants' relative – a drug addict who used drugs and alcohol and suffered from physical and mental disorders – was found dead in his cell by a fellow inmate on cell cleaning and meal distribution duty. According to a report drawn up by the prison authorities, when attempting to revive the patient in the cell the doctors had noticed a smell of gas coming from his mouth. A gas canister was also found on the floor near the body, on which an autopsy was performed two days later.

In December 2005 an initial expert report stated that the death had been the result of acute cardiorespiratory insufficiency caused by an electric shock, and that that electrocution could have been caused by a third person using an electrical stun gun. The report also mentioned that alternatively, the death might have been caused by the deliberate inhalation of a gas.

A few days later the investigating judge commenced criminal proceedings against persons unknown for death resulting from the commission of another offence. The applicants and other members of the victim's family were invited to join the proceedings as civil parties.

In July 2006 the public prosecutor's office ordered a second expert assessment, which concluded that the injuries on the deceased's body were incompatible with electrocution and that the death had been caused by the deliberate inhalation of gas from the canisters provided to prisoners for cooking.

In March 2009 the public prosecutor's office requested the discontinuation of the case, which the investigating judge dismissed. The following year the public prosecutor's office added the names of the prison director, the prison medical officer and the director of prison services to the list of persons suspected of causing the death. The facts in question were classified as manslaughter and the suspects were interviewed. The applicants twice requested the discontinuation of the preliminary investigations and demanded the suspects' committal for trial.

In July 2012 the public prosecutor's office once again requested a discontinuation. The applicants objected. Subsequently, the investigating judge scheduled a hearing for 29 November 2012. The applicants requested an earlier date owing to the imminent statutory limitation of the offences. The judge dismissed their request on the grounds that the parties had already been officially notified of the date.

In December 2012 the investigating judge discontinued the proceedings on the grounds that the offences had become statute-barred on 30 November 2012.

Relying on Article 2 (right to life), the applicants complain of the of the authorities' failure to honour their obligations to protect their relative's life and to conduct an effective investigation.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 17 March 2020

Name	Main application number
Alptekin and Others v. Turkey	43969/06
Edata-Trans S.R.L. v. the Republic of Moldova	55887/07
Seğmen v. Turkey	11314/10
Bakırhan v. Turkey	73783/11
Zümrüt v. Turkey	27167/12
Braga v. the Republic of Moldova	59351/12
Dzaurova v. Russia	44199/14
Turpulkhanova and Khasiyeva v. Russia	53284/13

Thursday 19 March 2020

Name	Main application number
Arushanyan v. Armenia	79501/12
Khachaturyan v. Armenia	22662/10
Mehrabyan v. Armenia	247/11
Tamrazyan v. Armenia	42588/10
Rustamov v. Azerbaijan	59974/19
Satullayev v. Azerbaijan	22004/11
Ivanovi v. Bulgaria	67320/16
Grumeza v. the Republic of Moldova	26015/13
Hermann v. Poland	59805/14
ŚWIT SP. Z O.O. v. Poland	77169/14
K.Z. v. Russia	35960/18
Dinçer v. Turkey	23345/10
Gürbüz and Bayar v. Turkey	44997/10
Kaya and Others v. Turkey	14443/19
Kaytan v. Turkey	29586/18
Miroğlu v. Turkey	13325/10
Özdü v. Turkey	16941/05
Şahiner v. Turkey	42166/15
Saygılı v. Turkey	34392/10
Senar Dolaz v. Turkey	66846/12
Tozkoparan v. Turkey	36675/07
Yılmaz v. Turkey	59242/08
Yüce v. Turkey	38792/08
Vagapov v. Ukraine	35888/11

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.